

TBHEC COMPLAINT NO. 2022-00204

IN THE MATTER OF

LISETTE DOMITEAUX

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**BEFORE THE TEXAS BEHAVIORAL
HEALTH EXECUTIVE COUNCIL**

**THE TEXAS STATE BOARD
OF EXAMINERS OF
PROFESSIONAL COUNSELORS**

AGREED ORDER FOR ELIGIBILITY

Pursuant to the authority under §507.305 of the Texas Occupations Code, §2001.056 of the Government Code, and 22 Texas Administrative Code §884.12(e), the Executive Director for the Texas Behavioral Health Executive Council ("Council") hereby approves, ratifies, and enters this Agreed Order with the following Findings of Fact, Conclusions of Law, and Order of the Council, which have been approved and accepted by **Lisette Domiteaux** ("Respondent") and which constitutes a full settlement and compromise of the complaint(s) currently pending against Respondent before the Council in the above-referenced and numbered matter(s).

FINDINGS OF FACT

1. Respondent is seeking reinstatement of her license as a professional counselor in the State of Texas and is, therefore, subject to the jurisdiction of the Council under the Act.
2. Respondent failed to timely renew her license which expired on March 31, 2020.
3. Respondent continued to practice professional counseling from the time of her license expiration until on or about January 10, 2022. Respondent submitted an application for reinstatement on January 21, 2022.

CONCLUSIONS OF LAW

1. Respondent voluntarily submitted an application to the Council and, therefore, is bound by the provisions of Chapters 503 and 507 of the Texas Occupations Code and the rules of the Council, 22 TAC Parts 30 and 41.
2. Violation of the Council's Rules is unprofessional conduct and constitutes grounds for the imposition of sanctions under §§507.301, and 507.351 of the Texas Occupations Code.
3. Based on the above Findings of Fact, the Council finds that Respondent violated Council

Rules 22 TAC 882.21(c) License Statuses, 882.23(a) License Required to Practice, and Tx Occupation Code 503.301, License Required.

4. Pursuant to Tex. Occupations Act, Sec. 507.351, the Executive Council may impose an administrative penalty on a person licensed or regulated by the Council.
5. Pursuant to Tex. Occupations Act, Sec. 507.352(a), the amount of an administrative penalty may not exceed \$5,000 for each violation. Each day a violation continues or occurs is a separate violation for purposes of imposing a penalty.

ORDER

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

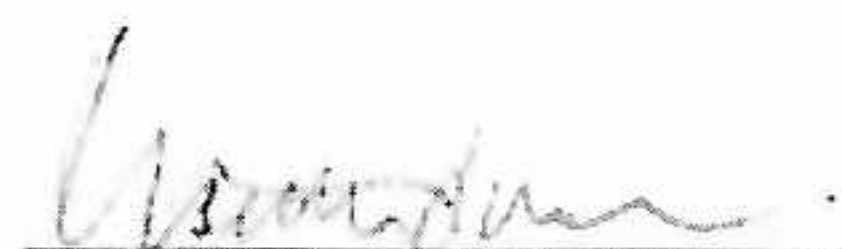
1. Respondent is hereby REPRIMANDED.
2. Based upon the foregoing, it is ORDERED that Respondent shall pay an administrative penalty of \$2000.00 (two thousand dollars) for the failure to maintain her license as required, of which \$1,500 represents administrative costs and \$500 represents administrative penalty.
3. Upon receipt of this payment and signed agreement, Respondent's current application for reinstatement of her license as a professional counselor shall proceed with processing, in accordance with 22 TAC 882.22, at the Texas Behavioral Health Executive Council.

WAIVERS

On the underlying licensing/professional/investigative file, Respondent has waived his or her right to an informal settlement conference before a Disciplinary Review Panel of the Council, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Tex. Gov't Code Ann., Ch. 2001, in exchange for the conditions set out in this Agreed Order.

THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

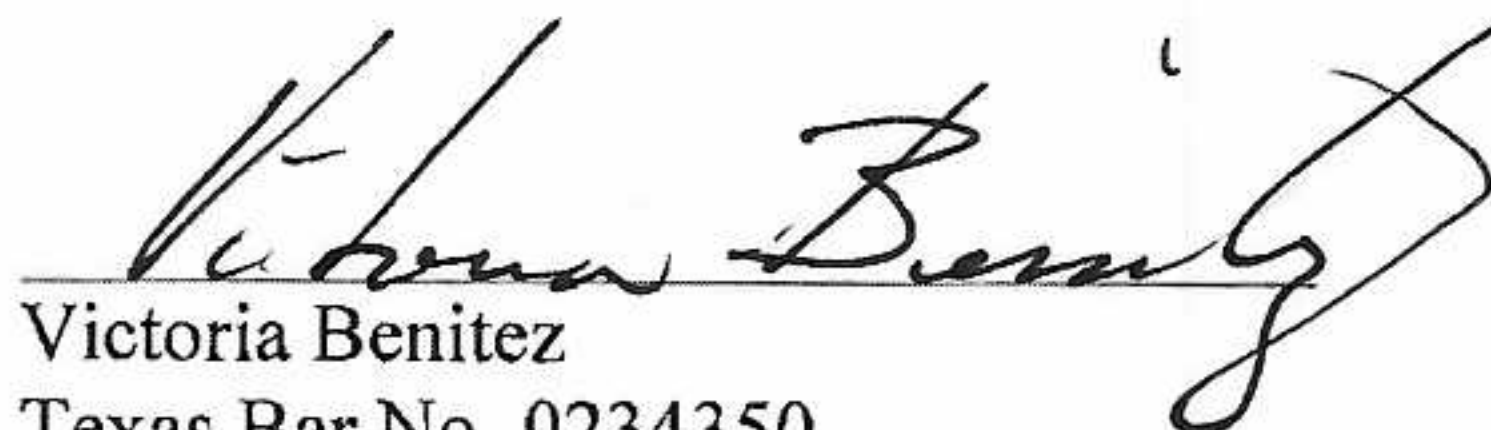
FOR THE RESPONDENT:



Lisette Domiteaux
5925 Forest Ln, Suite 202
Dallas, Texas 75230

DATE SIGNED: 01. MARCH 2022

FOR THE STAFF OF THE COUNCIL:



Victoria Benitez
Texas Bar No. 0234350
Staff Attorney
Texas Behavioral Health Executive Council
333 Guadalupe, Ste. 3-900
Austin, Texas 78701

DATE SIGNED: 3-2-22

APPROVED, RATIFIED, AND ENTERED THIS 2nd DAY OF March, 202 2.



Darrel Spinks
Executive Director
Texas Behavioral Health Executive Council